



PROTECTION FROM SEXUAL EXPLOITATION, ABUSE AND HARASSMENT (PSEAH) POLICY

Organization:

ASABA MEMORIAL EDUCATION FOUNDATION (AMEF)

Policy Title:

Protection from Sexual Exploitation, Abuse and Harassment
(PSEAH) Policy

Policy Number: AMEF-PSEAH-001

Version: 1.0

Effective Date: 10th June, 2026

Approved on behalf of the AMEF Founding Body;

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Position: Chairperson, Founding Body

Signature: 

Review Date: 10th June, 2028

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1. PURPOSE

AMEF is committed to creating and maintaining an environment in which all people who come into contact with its programs, personnel, partners and operations are treated with dignity, respect and fairness and are protected from sexual exploitation, sexual abuse and sexual harassment (SEAH).

AMEF has zero tolerance for sexual exploitation, sexual abuse and sexual harassment and for deliberate or negligent failure to prevent, report or appropriately respond to such conduct.

This Policy establishes AMEF's framework for:

- preventing sexual exploitation, abuse and harassment;
- identifying and managing PSEAH risks;
- establishing expected standards of behaviour;
- providing safe, accessible and confidential reporting mechanisms;
- ensuring appropriate and timely responses to concerns and incidents;
- protecting and supporting people affected by SEAH;
- preventing retaliation against people who raise concerns;
- holding perpetrators and those who facilitate or conceal misconduct accountable; and
- embedding safeguarding, integrity and accountability throughout AMEF's programs and organisational culture.

The Policy is particularly important because AMEF works with children, young people, women, communities and other people who may experience increased vulnerability or unequal power relationships.

2. SCOPE

This Policy applies to all AMEF activities and to all persons involved in AMEF's work, including:

- Founding Body members and directors;
- employees and managers;
- volunteers and interns;
- consultants and technical advisers;
- trainers, teachers, facilitators and health workers engaged by AMEF;
- contractors and suppliers;
- implementing partners and sub-partners;
- community representatives and program personnel;
- visitors and guests participating in AMEF activities; and
- any other person acting on behalf of or representing AMEF.

The Policy applies during:

- working hours;
- AMEF programs and projects;
- training sessions and educational activities;
- health and community outreach activities;
- field visits;
- travel undertaken for AMEF purposes;
- accommodation and events associated with AMEF activities;
- online and digital communications;
- social media interactions connected with AMEF work; and
- any other circumstance where a person's conduct may affect AMEF beneficiaries, personnel or the integrity of AMEF programs.

AMEF will require relevant partners, contractors and service providers to comply with equivalent PSEAH standards.

3. POLICY STATEMENT

AMEF does not tolerate:

1. sexual exploitation;
2. sexual abuse;
3. sexual harassment;
4. sexual activity with children;
5. exchanging money, employment, training, services, assistance, goods, opportunities or other benefits for sexual activity;
6. using a position of power, authority or trust to obtain sexual access or sexual favours;
7. retaliation against anyone who reports a concern or participates in an investigation;
8. deliberate concealment of PSEAH concerns or incidents; or
9. failure by persons with reporting responsibilities to report suspected or known incidents.

AMEF recognises that SEAH can be perpetrated by or against people of any gender and can occur between personnel, beneficiaries, community members, partners or other persons.

4. DEFINITIONS

4.1 Sexual Exploitation

Sexual exploitation means actual or attempted abuse of a position of vulnerability, differential power or trust for sexual purposes.

Examples include:

- requesting or accepting sexual favours in exchange for employment;
- requesting sexual activity in exchange for access to training;
- requesting sexual activity in exchange for health services or assistance;
- exploiting a person's economic or social vulnerability for sexual purposes;
- offering money, goods, employment, opportunities or services in exchange for sexual activity; and
- using authority over a beneficiary or employee to obtain sexual access.

4.2 Sexual Abuse

Sexual abuse means actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

Examples include:

- rape or attempted rape;
- sexual assault;
- unwanted sexual touching;
- forced kissing;
- forced sexual activity;
- sexual acts performed without consent; and
- sexual activity involving a child.

4.3 Sexual Harassment

Sexual harassment includes unwelcome sexual advances, requests for sexual favours or other unwelcome conduct of a sexual nature that may offend, humiliate, intimidate or otherwise adversely affect another person.

It may be:

- verbal;
- physical;
- written;
- visual;
- online;
- one-off; or
- repeated.

Examples include:

- unwanted sexual comments;
- sexual jokes or remarks;

- sexually explicit messages;
- unwanted touching;
- sexual gestures;
- displaying sexually explicit material;
- repeated unwanted requests for dates or sexual relationships;
- comments about a person's body or sexual life; and
- sending sexual images or content without consent.

Sexual harassment does not need to be repeated to constitute misconduct.

4.4 Child

For purposes of this Policy, a child means any person below the age defined by applicable Ugandan law.

AMEF will apply the higher safeguarding standard where there is any uncertainty concerning age.

4.5 Victim-Survivor

A victim-survivor is a person who has experienced or is alleged to have experienced sexual exploitation, abuse or harassment.

AMEF recognises that people may choose different terminology and will respect the individual's preference where appropriate.

4.6 PSEAH Concern

A PSEAH concern includes an allegation, suspicion, disclosure, observation or other information suggesting that SEAH may have occurred or may be occurring.

5. GUIDING PRINCIPLES

AMEF's implementation of this Policy is based on the following principles.

5.1 Zero Tolerance

AMEF has zero tolerance for SEAH and for deliberate inaction in relation to known or suspected SEAH.

5.2 Do No Harm

AMEF will take reasonable steps to ensure that its programs do not expose people to additional safeguarding risks.

5.3 Victim-Survivor-Centred Approach

The safety, dignity, rights, wishes and wellbeing of victim-survivors will be prioritised.

5.4 Best Interests of the Child

Where a concern involves a child, the child's safety, wellbeing and best interests will be the primary consideration.

5.5 Confidentiality

Information relating to an allegation or incident will only be shared with people who need the information to protect individuals, manage the incident or fulfil legal or organisational responsibilities.

Confidentiality does not mean that an incident will be ignored or that information can never be disclosed.

5.6 Non-Retaliation

No person will be punished, threatened, disadvantaged or otherwise retaliated against for raising a genuine concern or participating in a PSEAH process.

5.7 Inclusion and Non-Discrimination

AMEF will ensure that reporting and support mechanisms are accessible to people regardless of gender, age, disability, social status or other characteristics.

5.8 Accountability

AMEF will take appropriate action where this Policy is breached.

5.9 Prevention First

AMEF will prioritise prevention through risk assessment, recruitment, training, supervision, community awareness and safe program design.

6. PROHIBITED CONDUCT

The following conduct is prohibited:

6.1 Sexual Exploitation

No AMEF personnel or associated person may:

- exchange or attempt to exchange assistance, money, employment, training, goods or services for sexual activity;
- exploit vulnerability for sexual purposes;
- use authority or influence to obtain sexual favours;
- use program resources to facilitate sexual exploitation; or
- facilitate another person's sexual exploitation.

6.2 Sexual Abuse

No person covered by this Policy may:

- sexually assault another person;
- engage in non-consensual sexual activity;
- force or coerce another person into sexual activity;
- engage in sexual activity with a child; or
- threaten or intimidate a person into sexual activity.

6.3 Sexual Harassment

No person covered by this Policy may engage in sexual harassment in person or through electronic communications.

6.4 Abuse of Power

AMEF personnel must not use their position, authority, influence or access to beneficiaries to obtain sexual relationships or sexual favours.

Particular care is required where a person has authority over:

- recruitment;
- employment;
- admission to training;
- scholarships;
- selection of beneficiaries;
- provision of health services;
- distribution of resources;
- assessment or certification;
- referrals; or
- access to other benefits.

6.5 Sexual Relationships with Program Participants

AMEF recognises that relationships can be complex. However, personnel must never use a program-related power imbalance to pursue a sexual relationship with a beneficiary.

Where a relationship creates an actual or perceived conflict of interest, the person must disclose the situation to their supervisor or designated safeguarding officer.

7. AMEF PROGRAM-SPECIFIC SAFEGUARDING

7.1 Education

AMEF education activities must ensure that:

- teachers, trainers and facilitators understand their safeguarding responsibilities;
- sexual relationships between personnel and children are prohibited;
- trainers do not use grades, assessments, certificates or access to training to obtain sexual favours;
- children and young people know how to raise concerns;
- private or isolated interactions with children are appropriately managed;
- recruitment and supervision processes address safeguarding risks; and
- educational facilities provide safe reporting and referral pathways.

7.2 Livelihoods

AMEF livelihood programs must prevent exploitation arising from unequal access to:

- training;
- employment;
- apprenticeships;
- grants;
- equipment;
- business opportunities;
- markets;
- financial support; and
- referrals.

Staff and partners must never imply that sexual activity is required to access livelihood opportunities.

7.3 Health

AMEF health activities must ensure:

- respectful and professional interaction with patients and community members;
- appropriate professional boundaries;
- protection of confidential information;
- no sexual exploitation in exchange for treatment or services;
- appropriate referral pathways for survivors; and
- special safeguards for children and vulnerable adults.

7.4 Child Protection

PSEAH concerns involving children must be managed together with AMEF's Child Protection Policy.

AMEF will:

- prioritise the child's safety and best interests;
- ensure child-friendly reporting mechanisms;
- appropriately screen personnel working with children;
- provide safeguarding training;
- prevent inappropriate one-to-one contact where reasonably avoidable;
- maintain appropriate supervision;
- respond promptly to allegations or suspicions; and
- comply with applicable legal and reporting requirements.

AMEF's Child Protection Policy should therefore be treated as a companion policy to this PSEAH Policy.

8. RESPONSIBILITIES

8.1 Founding Body

The Founding Body is responsible for:

- approving this Policy;
- providing organisational leadership on safeguarding;
- ensuring adequate resources for implementation;
- overseeing significant PSEAH risks and incidents;
- ensuring accountability of senior management; and
- reviewing organisational safeguarding performance.

8.2 Executive Director

The Executive Director is responsible for:

- implementing this Policy;
- ensuring adequate safeguarding systems;
- ensuring staff receive appropriate training;
- ensuring concerns are acted upon;
- ensuring appropriate reporting to authorities or donors where required; and
- promoting a culture in which safeguarding concerns can be raised safely.

8.3 PSEAH/Safeguarding Focal Person

AMEF will designate a PSEAH/Safeguarding Focal Person.

The Focal Person will:

- receive or coordinate reports;
- maintain confidential records;
- advise management on safeguarding risks;

- coordinate initial risk assessment;
- facilitate referrals and support;
- coordinate investigations where appropriate;
- monitor implementation of the Policy;
- coordinate PSEAH training; and
- prepare periodic safeguarding reports for management and the Founding Body.

8.4 Program Managers

Program Managers must:

- identify PSEAH risks in program design;
- implement appropriate mitigation measures;
- ensure staff and partners understand safeguarding requirements;
- monitor safeguarding risks; and
- immediately escalate concerns.

8.5 All Personnel

Every AMEF personnel member has a responsibility to:

- comply with this Policy;
- behave professionally;
- maintain appropriate boundaries;
- report concerns;
- cooperate with investigations;
- protect confidentiality; and
- never retaliate against a person who raises a concern.

9. RECRUITMENT AND SCREENING

AMEF will apply safeguarding principles during recruitment.

Depending on the position and risk level, this may include:

- reference checks;
- identity verification;
- qualification verification;
- criminal record or police checks where appropriate and legally available;
- safeguarding-related interview questions;
- verification of previous employment;
- assessment of suitability for working with children or vulnerable people; and

- signed acknowledgement of AMEF's Code of Conduct and safeguarding policies.

Positions involving substantial contact with children or vulnerable beneficiaries will be subject to enhanced screening appropriate to the role.

10. TRAINING AND AWARENESS

AMEF will provide appropriate PSEAH training to:

- staff;
- volunteers;
- interns;
- trainers;
- health personnel;
- program personnel;
- relevant partners and contractors.

Training should cover:

- what constitutes SEAH;
- power and vulnerability;
- professional boundaries;
- recognising safeguarding concerns;
- how and where to report;
- confidentiality;
- non-retaliation;
- survivor-centred responses;
- child safeguarding; and
- responsibilities under this Policy.

Beneficiaries should also receive accessible information about their rights and available reporting channels.

11. PSEAH RISK ASSESSMENT

AMEF will integrate PSEAH risk assessment into program design and implementation.

Risk assessments should consider:

- age and vulnerability of participants;
- gender and power dynamics;
- location of activities;
- accommodation and travel arrangements;

- one-to-one interactions;
- digital communication;
- recruitment and selection processes;
- access to financial or material benefits;
- relationships between staff and beneficiaries;
- partner capacity;
- health-service interactions;
- education and training environments; and
- risks specific to children.

Higher-risk activities will require stronger safeguards and closer monitoring.

12. REPORTING MECHANISMS

AMEF will establish safe, accessible and confidential channels for reporting concerns.

A person may report a concern through:

1. the AMEF PSEAH/Safeguarding Focal Person;
2. a designated senior manager;
3. a Founding Body-designated safeguarding contact;
4. a confidential complaints mechanism;
5. a designated telephone contact;
6. a designated email address; or
7. other accessible community-based reporting mechanisms established by AMEF.

AMEF PSEAH Reporting Contact

Name: Jili Zawadi

Position: Child Protection and PSEAH Focal Person

Telephone: +256782673446

Email: childprotection@amefuganda.org

AMEF should ensure that beneficiaries are not required to report concerns exclusively through the person who may be the subject of the complaint.

13. MANDATORY REPORTING

All AMEF personnel who become aware of, receive a disclosure about, or reasonably suspect SEAH must report the concern through AMEF's designated reporting mechanism as soon as practicable.

Personnel must not:

- conduct their own informal investigation;
- confront the alleged perpetrator;
- promise absolute confidentiality;
- suppress the complaint;
- attempt to determine guilt themselves; or
- delay reporting while seeking additional evidence.

Where the concern involves a child, AMEF will follow its Child Protection Policy and applicable Ugandan legal and child protection requirements.

14. RESPONSE TO REPORTS

Upon receiving a report, AMEF will:

1. ensure immediate safety;
2. assess whether urgent medical, psychosocial or protection assistance is required;
3. assess risks to the victim-survivor and others;
4. record the concern securely;
5. determine appropriate internal and external reporting requirements;
6. refer the matter to appropriate authorities or services where required;
7. determine whether an investigation is appropriate;
8. take measures to prevent further harm;
9. protect confidentiality as far as possible; and
10. monitor the situation until appropriate closure.

The response must be proportionate to the nature and seriousness of the concern.

15. SURVIVOR SUPPORT

AMEF will seek to facilitate appropriate support for victim-survivors, which may include:

- medical care;
- psychosocial support;
- counselling;
- protection services;
- child protection services;
- legal assistance or referral;
- emergency assistance; and
- other appropriate specialist services.

AMEF will respect the dignity, privacy and choices of victim-survivors while also meeting mandatory legal and safeguarding obligations.

16. INVESTIGATION

Where an investigation is required, AMEF will ensure that it is:

- fair;
- impartial;
- appropriately confidential;
- conducted by competent persons;
- free from conflicts of interest; and
- proportionate to the allegation.

The alleged perpetrator will be treated fairly and will have an opportunity to respond through the appropriate process.

Where the allegation may constitute a criminal offence, AMEF will consider referral to the appropriate authorities in accordance with Ugandan law and applicable donor requirements.

AMEF will not attempt to substitute an internal disciplinary process for a criminal investigation where law enforcement involvement is required or appropriate.

17. INTERIM SAFEGUARDING MEASURES

While a concern is being assessed or investigated, AMEF may implement temporary measures such as:

- changing reporting lines;
- removing a person from direct contact with beneficiaries;
- suspending program-related duties;
- changing work schedules;
- restricting access to facilities or information; or
- taking other reasonable measures to protect people from further harm.

Such measures are protective and do not, by themselves, constitute a finding of guilt.

18. CONFIDENTIALITY AND INFORMATION MANAGEMENT

PSEAH records must be stored securely and accessed only by authorised persons.

AMEF will:

- collect only information reasonably required;
- restrict access to sensitive information;
- securely store investigation records;
- avoid unnecessary circulation of allegations;
- protect personal information; and
- comply with applicable data protection requirements.

Names and identifying information should not be disclosed publicly or unnecessarily within the organisation.

19. PROTECTION AGAINST RETALIATION

AMEF prohibits retaliation against any person who:

- reports a concern;
- makes a complaint;
- supports a victim-survivor;
- participates in an investigation;
- provides information;
- acts as a witness; or
- otherwise raises a genuine safeguarding concern.

Retaliation may constitute a separate disciplinary offence.

20. FALSE AND MALICIOUS REPORTS

AMEF recognises that concerns may sometimes be raised in good faith but cannot ultimately be substantiated.

A report will **not** be considered false merely because it cannot be proven.

However, knowingly making a deliberately false or malicious allegation may constitute misconduct and may result in disciplinary action.

21. PARTNERS AND CONTRACTORS

AMEF will assess PSEAH capacity when selecting and managing partners and contractors.

Relevant agreements should include requirements relating to:

- compliance with PSEAH standards;
- staff and volunteer codes of conduct;
- safeguarding training;
- reporting of incidents;

- cooperation with investigations;
- protection against retaliation;
- child protection where relevant; and
- termination or corrective action for serious breaches.

AMEF may require higher-risk partners to demonstrate appropriate safeguarding systems before commencing activities.

22. COMMUNITY PARTICIPATION AND FEEDBACK

AMEF will ensure that beneficiaries and communities understand:

- their rights;
- expected behaviour of AMEF personnel;
- prohibited conduct;
- available complaint mechanisms;
- how to report safely;
- what happens after a report; and
- protection against retaliation.

Information should be communicated in languages and formats accessible to the communities AMEF serves.

Children should receive age-appropriate safeguarding information.

23. DIGITAL SAFEGUARDING

AMEF personnel must maintain professional boundaries when communicating electronically with beneficiaries.

Personnel must not:

- send sexually explicit content;
- request sexual images;
- engage in sexualised communication with beneficiaries;
- use disappearing messages to conceal inappropriate interactions;
- request unnecessary personal information;
- communicate with children through personal accounts where safer organisational channels are available; or
- use program-related images or information inappropriately.

AMEF will apply appropriate safeguards to photography, video, social media and digital communications involving children and program participants.

24. TRAVEL, ACCOMMODATION AND EVENTS

AMEF will assess safeguarding risks associated with:

- field travel;
- accommodation;
- conferences;
- workshops;
- training camps;
- community events; and
- overnight activities.

Where children participate, appropriate supervision, accommodation and separation arrangements will be established.

Personnel must maintain professional boundaries during all AMEF-related travel and events.

25. DISCIPLINARY ACTION

A breach of this Policy may result in:

- counselling or corrective action for minor breaches;
- formal warning;
- removal from duties;
- suspension;
- termination of employment or engagement;
- termination of a partnership or contract;
- referral to professional bodies; and/or
- referral to law enforcement or other competent authorities.

Serious SEAH misconduct may constitute grounds for immediate disciplinary action, in accordance with the applicable laws and regulations of Uganda and AMEF's internal disciplinary procedures, while ensuring that due process and the rights of all parties are respected.

26. RECORDING, MONITORING AND REPORTING

AMEF will maintain appropriate records of:

- PSEAH training;
- risk assessments;
- safeguarding actions;
- complaints and reports;
- investigations;

- referrals;
- corrective actions; and
- policy implementation.

The Founding Body will receive appropriate safeguarding information at least annually, while maintaining confidentiality and protecting personal information.

AMEF will monitor:

- number and type of concerns reported;
- reporting accessibility;
- training completion;
- program safeguarding risks;
- implementation of mitigation measures; and
- lessons learned.

27. POLICY IMPLEMENTATION

AMEF will implement this Policy through:

1. Founding Body approval;
2. appointment of a PSEAH/Safeguarding Focal Person;
3. staff and volunteer orientation;
4. mandatory safeguarding training;
5. program-level risk assessments;
6. beneficiary awareness;
7. safe reporting mechanisms;
8. partner and contractor requirements;
9. regular monitoring; and
10. periodic policy review.

28. RELATED AMEF POLICIES

This Policy should be read together with:

- AMEF Child Protection Policy;
- AMEF Code of Conduct;
- AMEF Complaints and Feedback Policy;
- AMEF Human Resources Policy;
- AMEF Recruitment and Screening Procedures;
- AMEF Gender Equality Policy;
- AMEF Anti-Fraud and Anti-Corruption Policy;
- AMEF Whistleblower/Whistleblowing Policy; and

- relevant project-specific safeguarding procedures.

Where policies overlap, AMEF will apply the standard that provides the greatest protection from harm, subject to applicable law.

29. REVIEW OF THIS POLICY

This Policy will be reviewed:

- at least every two years;
- following a serious safeguarding incident;
- following significant changes in legislation;
- following significant changes to AMEF's programs; or
- when donor safeguarding requirements materially change.

The Founding Body is responsible for approving substantive amendments.

30. STAFF AND VOLUNTEER DECLARATION

I confirm that:

- I have received and read the AMEF PSEAH Policy;
- I understand what constitutes sexual exploitation, abuse and harassment;
- I understand my responsibilities under this Policy;
- I understand my obligation to report concerns;
- I understand that retaliation is prohibited;
- I understand that breaches of this Policy may result in disciplinary action and/or referral to authorities; and
- I agree to comply with this Policy and AMEF's Code of Conduct.

Name: _____

Position: _____

Signature: _____

Date: _____

ANNEX 1: PSEAH INCIDENT REPORTING FORM

A. Basic Information

Date concern received: _____

Date incident occurred, if known: _____

Location: _____

Person receiving report: _____

B. Person Affected

Name, if safe and appropriate: _____

Age: _____

Gender: _____

Contact details, if appropriate: _____

Is the person a child? Yes / No / Unknown

C. Nature of Concern

Tick all applicable:

- ☐ Sexual exploitation
- ☐ Sexual abuse
- ☐ Sexual harassment
- ☐ Sexual activity involving a child
- ☐ Abuse of power
- ☐ Online/digital sexual misconduct
- ☐ Retaliation
- ☐ Other safeguarding concern

D. Brief Description

Record only the information necessary to understand the concern.

E. Alleged Perpetrator

Name, if known: _____

Relationship to AMEF: _____

Position/organisation: _____

F. Immediate Safety Concerns

Is anyone at immediate risk?

Yes / No

If yes, describe action taken:

G. Referral/Support

Was medical support required?

Yes / No

Was psychosocial support required?

Yes / No

Was child protection support required?

Yes / No

Was referral to authorities considered?

Yes / No

H. Reporting and Follow-Up

Reported to PSEAH/Safeguarding Focal Person:

Name: _____

Date: _____

Action required:

CONFIDENTIAL – PSEAH/Safeguarding RECORD

ANNEX 2: PSEAH CODE OF CONDUCT – KEY COMMITMENTS

All AMEF personnel agree that they will:

1. Treat every person with dignity and respect.
2. Never sexually exploit or abuse another person.
3. Never sexually harass another person.
4. Never exchange assistance, employment, training, services or benefits for sexual activity.
5. Never engage in sexual activity with a child.
6. Maintain appropriate professional boundaries.
7. Never use their position of authority to obtain sexual favours.
8. Report suspected or known SEAH.
9. Protect confidentiality.
10. Never retaliate against a person who raises a concern.
11. Cooperate with legitimate investigations.
12. Put the safety and wellbeing of beneficiaries first.

I understand and agree to comply with this Code of Conduct.

Name: _____

Position: _____

Signature: _____

Date: _____